

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 ENGROSSED SENATE
5 BILL NO. 1459

By: Bergstrom of the Senate

and

Kendrix of the House

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9 An Act relating to abstracting; amending 1 O.S. 2021,
10 Section 22, as amended by Section 1, Chapter 85,
11 O.S.L. 2023 (1 O.S. Supp. 2025, Section 22), which
12 relates to the Oklahoma Abstractors Board; extending
13 sunset date; updating statutory language; requiring
14 electronic submission of certain report; providing an
15 effective date; and declaring an emergency.

16 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

17 SECTION 1. AMENDATORY 1 O.S. 2021, Section 22, as
18 amended by Section 1, Chapter 85, O.S.L. 2023 (1 O.S. Supp. 2025,
19 Section 22), is amended to read as follows:

20 Section 22. A. There is hereby re-created to continue until
21 ~~July 1, 2026~~ July 1, 2031, in accordance with the Oklahoma Sunset
22 Law, the Oklahoma Abstractors Board. Beginning January 1, 2008, the
23 Oklahoma Abstractors Board shall have the total responsibility of
24 administering and enforcing the Oklahoma Abstractors Act.

1 B. The Board shall have the power and duty to prescribe,
2 promulgate, and implement rules as deemed necessary to implement all
3 the provisions of the Oklahoma Abstractors Act.

4 C. The Board shall have the power and duty to obtain and secure
5 an office in Oklahoma City, and employ, direct, discharge, and
6 define the duties and set the salaries of employees of the Board,
7 including an executive director, as are necessary to implement the
8 provisions of the Oklahoma Abstractors Act.

9 D. The Board shall consist of nine (9) members who shall be
10 appointed by the Governor and confirmed by the Senate:

11 1. Six of the members shall be residents of this state who are
12 either a holder of a current valid ~~Certificate of Authority~~
13 certificate of authority or an employee of a holder of a current
14 valid ~~Certificate of Authority~~ certificate of authority for not less
15 fewer than five (5) years in a county in the district from which the
16 member is appointed prior to appointment. One member shall be
17 appointed from each of the following districts:

18 District 1: Alfalfa, Beaver, Blaine, Cimarron, Custer, Dewey,
19 Ellis, Garfield, Grant, Harper, Kingfisher, Major, Roger Mills,
20 Texas, Woods, and Woodward Counties.

21 District 2: Beckham, Caddo, Carter, Comanche, Cotton, Garvin,
22 Grady, Greer, Harmon, Jackson, Jefferson, Kiowa, Love, McClain,
23 Murray, Stephens, Tillman, and Washita Counties.

24 District 3: Canadian, Cleveland, Logan, and Oklahoma Counties.

1 District 4: Adair, Cherokee, Craig, Delaware, Kay, Mayes,
2 Muskogee, Noble, Nowata, Okmulgee, Osage, Ottawa, Pawnee, Payne,
3 Sequoyah, and Washington Counties.

4 District 5: Creek, Lincoln, Rogers, Tulsa, and Wagoner
5 Counties.

6 District 6: Atoka, Bryan, Choctaw, Coal, Haskell, Hughes,
7 Johnston, Latimer, ~~LeFlore~~ Le Flore, McIntosh, Marshall, McCurtain,
8 Okfuskee, Pittsburg, Pontotoc, Pottawatomie, Pushmataha, and
9 Seminole Counties;

10 2. One member shall be a resident of this state who has been a
11 licensed real estate broker in ~~Oklahoma~~ this state for not ~~less~~
12 fewer than five (5) years;

13 3. One member shall be an attorney who is a resident of this
14 state who has been licensed to practice in ~~Oklahoma~~ this state for
15 not ~~less~~ fewer than five (5) years; and

16 4. One member shall be a resident of this state who has been an
17 officer in a bank in ~~Oklahoma~~ this state for not ~~less~~ fewer than
18 five (5) years.

19 E. The Governor shall make the initial appointments to the
20 Board within ninety (90) days of July 1, 2007:

21 1. The initial appointments for the members of the Board shall
22 be as follows:

23 a. members appointed from Districts 1 and 3 shall serve
24 until July 1, 2008,

- 1 b. members appointed from Districts 2 and 4 shall serve
2 until July 1, 2009,
3 c. members appointed from Districts 5 and 6 shall serve
4 until July 1, 2010,
5 d. the real estate broker member shall serve until July
6 1, 2010,
7 e. the attorney member shall serve until July 1, 2009,
8 and
9 f. the bank officer member shall serve until July 1,
10 2010; and

11 2. Thereafter, all members shall serve four-year terms.

12 F. Each member shall hold office until the expiration of the
13 term of office for which appointed or until a successor has been
14 appointed and confirmed:

15 1. Vacancies on the Board due to death, resignation, or removal
16 occurring during a term shall be filled by the Governor for the
17 unexpired portion of the term in a manner as provided for regular
18 appointments to the Board;

19 2. Members filling the remainder of an unexpired term shall
20 assume office immediately upon appointment by the Governor and shall
21 serve until confirmation or denial of confirmation by the Senate;
22 and

23 3. A member may be reappointed to the Board, but shall not
24 serve more than two consecutive terms. A member that has previously

1 served two consecutive terms may be reappointed after the expiration
2 of at least one full term.

3 G. Members of the Board shall receive no salary or compensation
4 for service on the Board, but shall be reimbursed for travel
5 expenses incurred on behalf of their service on the Board pursuant
6 to the State Travel Reimbursement Act.

7 H. Members may be removed from office by the Governor:

8 1. For inefficiency, neglect of duty, or malfeasance in office
9 in the manner provided for by law for the removal of officers not
10 subject to impeachment;

11 2. For cause which shall include, but not be limited to:

12 a. the member has ceased to be qualified. A member of
13 the Board is no longer qualified to serve if that
14 member:

15 (1) is a member whose ~~Certificate of Authority~~
16 certificate of authority, license, or permit
17 pursuant to the laws of this state has become
18 void or has been revoked or suspended, or

19 (2) is a member who has moved from this state,

20 b. the member has been convicted, or pled guilty or nolo
21 contendere to a felony pursuant to the laws of the
22 United States or any jurisdiction,
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1 c. the member has become medically incapacitated as
2 determined in writing by a medical doctor upon request
3 by the Board, or

4 d. the member has been absent from three meetings, or is
5 absent for more than one-half (1/2) the number of
6 minutes for which a meeting is conducted of three
7 meetings as determined by the Board during any twelve-
8 month period, unless such absence is determined to be
9 unavoidable in the opinion of a majority of the
10 remaining members;

11 3. Upon being found guilty, through due process, of
12 malfeasance, misfeasance, or nonfeasance in relation to Board
13 duties; or

14 4. Upon being found mentally incompetent by a court of
15 competent jurisdiction.

16 I. Removal pursuant to the provisions of subsection H of this
17 section shall be accomplished in the following manner:

18 1. After a majority vote of the remaining members setting out
19 the dates of absences or other grounds for removal and the fact of
20 the disqualification of the member, a written notification of the
21 ~~said~~ vote shall be electronically sent to the Governor; and

22 2. Upon receipt of the written notification, the Governor,
23 after a hearing conducted in accordance with the provisions of the
24 Administrative Procedures Act, may remove any member of the Board

1 for any of the reasons set out in the notice from the Board or for
2 any other reason specified in this ~~act~~ section, provided:

- 3 a. removal pursuant to the provisions of this subsection
4 shall occur upon the Governor filing a written
5 statement of findings after the hearing as to the
6 reasons and basis for removal of the member with the
7 secretary of the Board, and
8 b. the Governor shall appoint another member in the
9 manner provided for appointments to the Board.

10 SECTION 2. This act shall become effective July 1, 2026.

11 SECTION 3. It being immediately necessary for the preservation
12 of the public peace, health, or safety, an emergency is hereby
13 declared to exist, by reason whereof this act shall take effect and
14 be in full force from and after its passage and approval.

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16 COMMITTEE REPORT BY: COMMITTEE ON ADMINISTRATIVE RULES, dated
17 04/08/2026 - DO PASS.
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